

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ROMEO VAIRO,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE DMITRIY
SHERY, SHIELD NO. 676 and POLICE OFFICER
DAVID PORRAS, SHIELD NO. 2001,

Defendants.
-----X

Date filed:
Index No.:

SUMMONS

Plaintiff designates
New York County
as the place of trial.

Basis of Venue:
Location of Occurrence.

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 7, 2023

**FRIEDMAN, LEVY, GOLDFARB,
GREEN & BAGLEY, P.C.**
Attorneys for Plaintiff
380 Lexington Avenue – 29th Floor
New York, New York 10168
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

DETECTIVE DMITRIY SHERY
SHIELD NO. 676
1 Police Plaza
New York, NY 10038

POLICE OFFICER DAVID PORRAS
SHIELD NO. 2001
5th Precinct
19 Elizabeth Street
New York, NY 10013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ROMEO VAIRO,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DETECTIVE DMITRIY
SHERY, SHIELD NO. 676 and POLICE OFFICER
DAVID PORRAS, SHIELD NO. 2001,

Defendants.
-----X

Plaintiff, ROMEO VAIRO, by his attorneys FRIEDMAN, LEVY, GOLDFARB,
GREEN & BAGLEY, P.C. as for his Verified Complaint, alleges the following, upon
information and belief:

PARTIES

1. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK
was and still is a municipal corporation duly organized and existing under the laws of the
State of New York.

2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK,
its agents, servants and employees operated, maintained and controlled the Police
Department of the City of New York, including all Police Officers thereof.

3. At all times hereinafter mentioned, defendant DETECTIVE DMITRIY
SHERY, SHIELD NO. 676, was employed by defendant THE CITY OF NEW YORK as a
police officer.

4. At all times hereinafter mentioned, defendant DETECTIVE DMITRIY
SHERY, SHIELD NO. 676 was acting within the scope of his employment as a police
officer with THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, defendant POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 was employed by defendant THE CITY OF NEW YORK as a police officer.

6. At all times hereinafter mentioned, defendant POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 was acting within the scope of his employment as a police officer with THE CITY OF NEW YORK.

7. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the defendant.

8. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001, as said risk attaches to the public consumers of the services provided by The New York City Police Department.

9. At all times hereinafter mentioned defendant THE CITY OF NEW YORK employed DETECTIVE DMITRIY SHERY, SHIELD NO. 676.

10. At all times hereinafter mentioned defendant THE CITY OF NEW YORK employed POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001.

11. At all relevant times, the individual defendants were acting pursuant to their authority as NEW YORK CITY POLICE DEPARTMENT employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken

in the course of their duty and were incidental to their otherwise lawful function as agents, servants and employees of the New York City Police Department.

12. The plaintiff, ROMEO VAIRO ("VAIRO") was, at all times hereinafter mentioned a resident of the County of Bronx, City and State of New York, residing at 2450 Hering Avenue.

CONDITIONS PRECEDENT

13. On or about October 28, 2022, plaintiff duly served a Notice of Claim upon the City of New York in the manner and mode required by law.

14. At least thirty (30) days have elapsed since the service of the Claim prior to the Commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

15. On December 23, 2022, the plaintiff complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-h of the General Municipal Law.

JURISDICTION AND VENUE

16. The plaintiff brings this action in the Supreme Court, State of New York, County of New York, because the plaintiff has been injured for a sum that exceeds the jurisdiction of all lower courts.

17. The plaintiff properly designates New York County as the place of trial. The basis of the venue is the location of the occurrence.

STATEMENT OF FACTS

18. Around October 13, 2021, defendant DETECTIVE DMITRIY SHERY, SHIELD NO. 676, initiated multiple phone calls to the plaintiff's wife in an attempt to contact plaintiff for a pistol permit renewal. Plaintiff spoke with Detective Shery. However,

defendant SHERY falsely and with improper motive claimed that the plaintiff had made threats toward him, resulting in the plaintiff being charged with aggravated harassment. Subsequently, on November 17, 2021, the plaintiff was arrested based upon the false accusations of DETECTIVE DMITRIY SHERY at the 5th Precinct located at 19 Elizabeth Street in the County, City and State of New York. At the above specified time and place, without justification or provocation and without a warrant, the defendants, THE CITY OF NEW YORK, DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 assaulted, confined, unduly restrained, falsely arrested and falsely imprisoned plaintiff VAIRO.

19. Defendants THE CITY OF NEW YORK, DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 falsely arrested and falsely imprisoned plaintiff, VAIRO.

20. Plaintiff VAIRO was held at the 5th Precinct for approximately five (5) hours and was then transferred to The Tombs, also known as the Manhattan Detention Complex, where he was held for approximately twelve (12) hours.

21. Plaintiff VAIRO was forced to attend Court approximately eight (8) times.

22. Plaintiff VAIRO's firearm permit and his status as a peace officer were revoked, resulting in loss of employment and job opportunities.

23. On August 10, 2022, all charges against plaintiff VAIRO were dismissed in his favor.

AS AND FOR A FIRST CAUSE OF ACTION

24. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "23", inclusive, as though each were set forth at length herein.

25. On November 17, 2021, and thereafter, in the County, City and State of New York, the defendants, their agents, servants and/or employees wrongfully arrested,

imprisoned, detained, assaulted and battered plaintiff, VAIRO, without any right or grounds thereof.

26. Defendants DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 injured and maimed the plaintiff VAIRO such that he was unable to move freely or otherwise leave the scene without apprising him as to why he was being placed under arrest.

27. Plaintiff was detained, arrested, imprisoned, assaulted and battered by the defendants, their agents, servants and/or employees without probable cause and/or justification.

28. Defendants, through their agents, servants and/or employees, acted in bad faith in committing the aforementioned arrest, detention, imprisonment, assault and battery of plaintiff, VAIRO.

29. Defendants, their agents, servants and/or employees, intended to confine the plaintiff, VAIRO, in that plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not privileged.

30. At the time of his unlawful arrest, detention and imprisonment, plaintiff, VAIRO, had not committed or attempted to commit any illegal act or crime.

31. At the time of plaintiff's unlawful arrest, defendants knew that the aforementioned arrest and detention were false and without probable cause.

32. The said false arrest and false imprisonment caused plaintiff, VAIRO, to suffer emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation.

33. Defendants placed plaintiff VAIRO under arrest and falsely charged him with aggravated harassment of DETECTIVE DMITRIY SHERY upon false statements and allegations made by DETECTIVE DMITRIY SHERY, who knew them to be false.

34. Plaintiff VAIRO was in police custody, was unlawfully detained and falsely imprisoned. The unlawful search and seizure was without due process of law and was done to deprive plaintiff of his rights guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

35. It is alleged that defendants THE CITY OF NEW YORK, DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001, their agents, servants and employees, maliciously and intentionally detained, falsely detained, falsely imprisoned and humiliated plaintiff, VAIRO, in violation of his constitutional rights.

36. Plaintiff VAIRO was released from custody on or about November 18, 2021.

37. As a direct result of the above defendants' actions, plaintiff, VAIRO, suffered and continues to suffer severe mental anguish, humiliation, shame, emotional distress and damage to reputation, some or all of which may be permanent.

38. Plaintiff, VAIRO, suffered – and continues to suffer – greatly, was and is physically and emotionally traumatized by this excessive use of force, detention and imprisonment.

39. The false criminal arrest and wrongful imprisonment of plaintiff, VAIRO, because of defendants' knowledge of lack of any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

40. As a direct and proximate result of defendants' actions, plaintiff, VAIRO, was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and the State of New York.

41. As a result of the foregoing, plaintiff, VAIRO, demands judgment against defendants THE CITY OF NEW YORK AND DETECTIVE DMITRIY SHERY, SHIELD

NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

42. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "41," inclusive, as though each were set forth fully at length herein.

43. On November 17, 2021, in the County, City and State of New York, plaintiff was assaulted and battered by DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 employed by defendant, THE CITY OF NEW YORK.

44. On November 17, 2021, defendants commenced a criminal proceeding against plaintiff knowing that plaintiff had not committed any of the alleged criminal acts and knowing that said allegations made by DETECTIVE DMITRIY SHERY were false and made with improper motive.

45. On August 10, 2022, the criminal action was terminated in favor of the plaintiff.

46. Defendants lacked probable cause for the arrest and criminal proceeding, to wit, the defendants did not witness any criminal acts, the defendants did not observe, nor did they have any credible evidence that plaintiff had verbally harassed defendant DETECTIVE DMITRIY SHERY over the phone on October 13, 2021, as alleged.

47. Despite this lack of probable cause, known to defendants immediately and prior to the arrest of plaintiff, defendants still falsely arrested plaintiff and maliciously prosecuted him for crimes he did not commit, knowing said allegations were false.

48. Defendants acted with improper motive and actual malice by knowingly arresting and continuing to prosecute plaintiff from November 17, 2021, until August 10, 2022, when charges were dropped.

49. As a result of the above-mentioned, the plaintiff, VAIRO, was injured, became sick, sore, lame and disabled, and upon information and belief, will continue to suffer from said injuries.

50. As a result of the foregoing, plaintiff, VAIRO, demands judgment against defendants THE CITY OF NEW YORK, DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

51. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "50," inclusive, as though each were set forth fully at length herein.

52. The actions of defendants heretofore described constitute an unlawful arrest, unlawful detention, false imprisonment, wrongful imprisonment, assault and battery, all in violation of plaintiff, VAIRO's civil rights.

53. Defendants deprived plaintiff, VAIRO, of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

54. Defendants violated the civil and constitutional rights of plaintiff, VAIRO, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

55. Defendants' actions were undertaken under the color of law and would not have existed but for said defendants using their official power.

56. The supervisors and policy-making officers of Defendant, THE CITY OF NEW YORK, and its Police Department have, as a matter of policy, failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individual officer engaged in such practices.

57. Defendant THE CITY OF NEW YORK and its Police Department has sanctioned the above-described policy and practices through its deliberate indifference to the effect of the said policy upon the constitutional and civil rights of plaintiff, VAIRO, and others similarly situated.

58. Defendants knew that DETECTIVE DMITRIY SHERY and POLICE OFFICER DAVID PORRAS had multiple prior complaints against them, many substantiated, stemming from abuse of process and excessive force, yet failed to take steps to address the actions of these officers.

59. As a result of the foregoing, plaintiff, VAIRO, demands judgment against defendants THE CITY OF NEW YORK, DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

60. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "59," inclusive, as though each were set forth fully at length herein.

61. Defendant THE CITY OF NEW YORK hired and retained in its employ police officers, including defendants DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 with the knowledge that said police officers lacked the experience to be employed by the aforementioned defendant, and were, therefore, unfit to be police officers.

62. Defendant THE CITY OF NEW YORK hired and retained in its employ police officers, including defendants DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001, with knowledge that said police officers lacked the deportment to be employed by the aforementioned defendant, and were, therefore, unfit to be police officers.

63. Defendant THE CITY OF NEW YORK hired and retained in its employ police officers, including defendants DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001, with the knowledge that said police officers had vicious propensities and were therefore unfit to be police officers as evidenced by multiple substantiated allegations of abuse of process.

64. As a result of the foregoing, plaintiff VAIRO has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

65. As a result of the foregoing, plaintiff VAIRO demands judgment against defendants THE CITY OF NEW YORK, DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

66. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "65," inclusive, as though each were set forth fully at length herein.

67. That the aforementioned occurrences, to wit: the false arrest, detainment, unlawful arrest, unlawful and false imprisonment of plaintiff VAIRO; the assault and battery committed by defendants against plaintiff VAIRO; the violation of plaintiff's civil and constitutional rights; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the defendants, their agents, servants and/or employees, without any negligence on the part of the plaintiff VAIRO.

68. As a result of the foregoing, plaintiff VAIRO, demands judgment against defendants THE CITY OF NEW YORK, DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

69. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "68," inclusive, as though each were set forth fully at length herein.

70. Defendants' conduct towards plaintiff, was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

71. Defendants acted with the desire to cause plaintiff VAIRO, mental distress and physical distress and pain, or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

72. Defendants acted with utter and reckless disregard for the consequences of their actions.

73. As a result of the foregoing, plaintiff VAIRO, has sustained severe and debilitating physical, emotional and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

74. As a result of the foregoing, plaintiff VAIRO demands judgment against defendants THE CITY OF NEW YORK, DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION

75. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "74," inclusive, as though each were set forth fully herein.

76. Upon information and belief, defendant, THE CITY OF NEW YORK, through defendants DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001, and potentially other police officers who are unknown at this time, by their conduct and under color of state law, had opportunities to

intercede on behalf of plaintiff VAIRO to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

77. As a direct and proximate result, plaintiff suffered injuries and damages described above.

78. As a result of the foregoing, plaintiff VAIRO, demands judgment against defendants THE CITY OF NEW YORK, DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 in a sum of money that exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

79. That by reason of the foregoing, plaintiff, VAIRO, was severely injured and damaged, sustained personal injuries, bruises, trauma, mental distress and other injuries; his civil rights were violated. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some injuries which are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, and Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

80. Plaintiff VAIRO suffered a deprivation of his civil rights and liberty, was falsely arrested and falsely imprisoned, the use of excessive and unnecessary force was used against him; he was assaulted, humiliated, embarrassed, unlawfully detained, suffered emotional harm, shock, loss of reputation in the community, loss of self-esteem, and fear and anxiety as a result of this incident.

81. Plaintiff was deprived of his freedom.

82. As a result of the aforementioned acts, the defendants violated the rights of plaintiff VAIRO, secured to him under the Eighth Amendment and Fourteenth Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

83. Plaintiff VAIRO was caused to be injured and to undergo pain and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of defendants.

84. The above constitutional violations are all actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985, 1986 and under New York State Law.

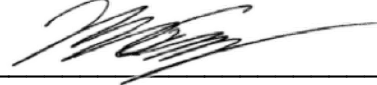
85. As a result of the aforesaid, plaintiff VAIRO was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff, ROMEO VAIRO, respectfully demands judgment against defendants, THE CITY OF NEW YORK, DETECTIVE DMITRIY SHERY, SHIELD NO. 676 and POLICE OFFICER DAVID PORRAS, SHIELD NO. 2001 and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fees, costs and disbursements of this action; such other and further relief as this Court may deem proper under the circumstances.

Dated: New York, New York
November 7, 2023

**FRIEDMAN, LEVY, GOLDFARB,
GREEN & BAGLEY, P.C.**

Attorneys for Plaintiff
380 Lexington Avenue – 29th Floor
New York, New York 10168
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

The undersigned, an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

The undersigned is the attorney of record for the plaintiff in the within action; I have read the foregoing Summons and Verified Complaint and know the contents thereof; that the same is true to affirmant's own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, affirmant believes them to be true. The reason this Verification is made by affirmant and not plaintiff is that the plaintiff resides outside of the county wherein the affirmant maintains his offices.

The grounds for affirmant's belief as to all matters not stated upon affirmant's knowledge are as follows: conversations with the plaintiffs and review of various documents related to this matter.

Dated: New York, New York
November 7, 2023



NICOLAS BAGLEY, ESQ.